



General Assembly

February Session, 2026

***Raised Bill No. 119***

LCO No. 1097



Referred to Committee on GENERAL LAW

Introduced by:  
(GL)

***AN ACT CONCERNING USED MOTOR VEHICLE WARRANTIES.***

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Subsections (a) to (c), inclusive, of section 42-221 of the 2026  
2 supplement to the general statutes are repealed and the following is  
3 substituted in lieu thereof (*Effective October 1, 2026*):

4 (a) A dealer selling a used motor vehicle [which has a cash purchase  
5 price of three thousand dollars or more] that is less than ten years of age  
6 shall not exclude, modify, disclaim or limit implied warranties on the  
7 motor vehicle.

8 (b) Each contract entered into by a dealer for the sale to a consumer  
9 of a used motor vehicle [which has a cash purchase price of three  
10 thousand dollars or more but less than five thousand dollars,] that is less  
11 than ten years of age shall include an express warranty, covering the full  
12 cost of both parts and labor, that the vehicle is mechanically operational  
13 and sound and will remain so for at least [thirty] sixty days or [one  
14 thousand five hundred] three thousand miles of operation, whichever  
15 period ends first, in the absence of damage resulting from an automobile

16 accident or from misuse of the vehicle by the consumer. [Each contract  
 17 entered into by a dealer for the sale of a used motor vehicle which has a  
 18 cash purchase price of five thousand dollars or more shall include an  
 19 express warranty, covering the full cost of both parts and labor, that the  
 20 vehicle is mechanically operational and sound and will remain so for at  
 21 least sixty days or three thousand miles of operation, whichever period  
 22 ends first, in the absence of damage resulting from an automobile  
 23 accident or from misuse of the vehicle by the consumer.] A dealer may  
 24 not limit a warranty covered by this section by the use of such phrases  
 25 as "fifty-fifty", "labor only", "drive train only", or other words attempting  
 26 to disclaim [his] the dealer's responsibility.

27 (c) The provisions of this section shall not apply to: (1) The [sale of a  
 28 used motor vehicle having a cash purchase price of less than three  
 29 thousand dollars; (2) the] sale of [such] used motor vehicles between  
 30 dealers; or [(3)] (2) the sale of a used motor vehicle [which] that is [seven]  
 31 ten years of age or older, which age shall be calculated from the first day  
 32 in January of the designated model year of such vehicle.

33 Sec. 2. Subsection (a) of section 42-224 of the general statutes is  
 34 repealed and the following is substituted in lieu thereof (*Effective October*  
 35 *1, 2026*):

36 (a) A used motor vehicle may be sold "as is" by a dealer only [if its  
 37 cash purchase price is less than three thousand dollars or] if such used  
 38 motor vehicle is [seven] ten years of age or older, which age shall be  
 39 calculated from the first day in January of the designated model year of  
 40 such vehicle.

|                                                                               |                        |                  |
|-------------------------------------------------------------------------------|------------------------|------------------|
| This act shall take effect as follows and shall amend the following sections: |                        |                  |
| Section 1                                                                     | <i>October 1, 2026</i> | 42-221(a) to (c) |
| Sec. 2                                                                        | <i>October 1, 2026</i> | 42-224(a)        |

***Statement of Purpose:***

To provide that (1) a dealer selling a used motor vehicle that is less than ten years of age shall not exclude, modify, disclaim or limit an implied warranty on the vehicle, (2) each contract entered into by a dealer for the sale of any such used motor vehicle to a consumer shall include an express warranty that the vehicle is mechanically sound and will remain so for at least sixty days or three thousand miles of operation, whichever occurs first, and (3) a used motor vehicle may be sold "as is" by a dealer only if the vehicle is ten years of age or older.

*[Proposed deletions are enclosed in brackets. Proposed additions are indicated by underline, except that when the entire text of a bill or resolution or a section of a bill or resolution is new, it is not underlined.]*